**ZIMASCO (PVT) LTD**

**Versus**

**FIDELIS MUDZENGI**

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 10 FEBRUARY AND 14 APRIL 2026

**Civil trial – Preliminary point on court's jurisdiction**

*P. Dube,* for the plaintiff
*M. Ndlovu*, for the defendant

**KABASA J:** On the day this civil trial was supposed to commence, counsel for the defendant submitted that he had a preliminary point to raise, which point could not have been raised earlier as counsel was instructed to appear a few days before the trial. The point counsel sought to raise was one which both the court and counsel for the plaintiff were not aware of. I therefore allowed the parties to file heads of argument regarding the preliminary point, which preliminary point was on whether the court had jurisdiction to deal with the matter.

The parties duly filed the heads of argument and this judgment is concerned with this point.

I propose to set out what the plaintiff's case is anchored on for it is this claim which the defendant argues should be dealt with by the Administrative Court.

On 13 December 2021 the plaintiff issued summons claiming the following:-

"(a) Payment by defendant of US$269 474 being the value of the chrome ore concentrate which plaintiff would have realised from the 27 349 tonnes of raw chrome ore illegally mined by the defendant or alternatively payment of the Zimbabwe dollar equivalent at the ruling Reserve Bank of Zimbabwe auction rate as at the date of judgment or such other official rate in force or applicable as at the date of judgment.

(b) Interest thereon at 5% per annum from date of summons to date of full and final payment.

(c) Costs of suit."

The plaintiff's claim, as elaborated in the declaration is that it is the holder of a mining claim known as Rhodesdale 3 with Registration No. 313 BM situate in Lalapanzi. From May – June 2021, the defendant illegally and unlawfully extracted 27 349 tonnes of raw chrome fines from the plaintiff's mine block.

The 27 349 tonnes of raw chrome would have yielded 2 735 tonnes of chrome ore concentrate whose export value would have been US$269 474.

After seeking and obtaining further particulars from the plaintiff, the defendant's reply to the claim was that he operated a mining claim known as Reef 2 which shares a boundary with plaintiff's. About 100 000 tonnes of raw chrome ore dump occupied part of the plaintiff's mining site and an independent mining site. The defendant extracted fines from the dump after engaging a representative of the plaintiff who confirmed the boundaries and the fact that defendant was working outside the plaintiff's site. The extraction of the fines was done openly and 2 300 tonnes was realised for which payment of US$2 300 was made. The extraction was therefore outside the plaintiff's boundaries.

The foregoing background attracted the preliminary point aforementioned.

**Defendant's Submissions**

Counsel for the defendant's argument is that the plaintiff's claim is one for damages. The plaintiff therefore seeks compensation from the defendant for the loss suffered due to the defendant's unlawful act. As this matter arises from mining, the recourse is provided for in the Mines and Minerals Act [Chapter 21:05]. Section 133 of the Act stipulates that where one is claiming compensation, such should be determined by the Administrative Court.

Counsel referred to s5, s31 and s120 of the Act which define an owner, occupier and reserved ground. Such definitions locate the plaintiff's claim within the purview of the Act and consequently the jurisdiction of the Administrative Court. The High Court ought not to be over burdened with claims which can be dealt with by the Administrative Court.

Counsel further argued that since statute specifically provided for the court with the requisite jurisdiction, to deviate from such an express provision is tantamount to a contravention of such statute. The High Court ought not to usurp the jurisdiction of the Administrative Court.

The issues regarding whether there was an encroachment into boundaries, the existence of an underground extension block, reserved ground and the existence of an order registered in terms of the Act are all issues to be resolved by the Administrative Court, so counsel argued.

It is therefore in the Administrative Court that the matter must be adjudicated on.

With this summation counsel for the defendant prayed that the court declines jurisdiction and mulct the plaintiff with punitive costs.

I have deliberately shied away from referring to the case authorities replete in the heads of argument filed by counsel for the defendant. I intend to refer to these cases in my analysis of the parties' respective submissions.

**Plaintiff's Submissions**

Counsel for the plaintiff zeroed in on the pleadings, articulating the basis of the plaintiff's claim and the defendant's answer to that claim.

The extraction of the ore was from the plaintiff's dump whose location traversed the plaintiff's and an independent location. The plaintiff showed the defendant the boundaries but the defendant chose to move to a different side of the same dump. The claim is therefore arising from the unlawful expropriation of the plaintiff's raw chrome. There is no issue of an underground extension block. The defendant does not claim that this dump belonged to him or that it was within his mining claim.

The plaintiff's dump was exclusively for the plaintiff and it is that dump that the defendant expropriated. Whether or not such dump extended to an independent location did not change the fact that it was the plaintiff's dump.

The plaintiff's claim is based on the unlawful expropriation of its dump and the High Court therefore has jurisdiction to adjudicate over the matter.

Counsel for the plaintiff went on to state the jurisdiction of the court as expounded in s171(1)(a) of the Constitution. The court has inherent jurisdiction and assumes jurisdiction even in those matters where other courts, including the Magistrates Court, have jurisdiction.

Section 133 of the Mines and Minerals Act is not applicable, given the nature of the plaintiff's claim and even if it was applicable the powers reposed in the High Court would not put the case beyond the court's jurisdiction, so counsel contended.

The High Court also exercises its jurisdiction in matters arising from the Mines and Minerals Act per the provisions of s345 of the Act and where necessary, refer a dispute to the Mining Commissioner for purposes of obtaining that official's report, where such is deemed necessary.

Sections 31, 35 and section 120 of the Act which define ground not open to prospecting, reserved ground, a holder in relation to an underground extension block and an owner of land speak to the issue of compensation in terms of s133. The plaintiff's claim is not located in s133 and the definitions provided in sections 31, 35 and 120 find no expression in the claim the plaintiff seeks to be adjudicated on. The matter therefore is not one envisaged in s133 which falls within the purview of the Administrative Court.

The parties' dispute is therefore outside the ambit of s133 of the Act but is squarely located in the unlawful expropriation of the plaintiff's dump to the plaintiff's financial prejudice.

The court must look to the parties' pleadings and resolve the matter in tandem with such pleadings. The parties in turn are bound by the same pleadings and the issues stemming from such pleadings.

Counsel for the plaintiff equally cited case authorities in support of the arguments proffered. I have already alluded to the fact that such case authorities will be addressed in my analysis of the parties' respective arguments.

**Analysis of the facts and application of the law**

Section 133 of the Mines and Minerals Act provides that: -

> "Any owner or occupier of reserved ground who is injuriously affected by any mining operations carried on any underground extension block shall be entitled to recover compensation from the holder of such block in such amount as may be agreed or, failing agreement, as shall be determined by the Administrative Court."

There is nothing in the pleadings which speaks to mining operations carried on any underground extension block. The plaintiff's claim makes no mention of such and the defendant's answer to the claim does not make reference to such.

The pleadings are therefore clear as to what the parties are wrangling over. The court, based on the pleadings is left in no doubt as to what the nature of the claim is and its genesis.

A reading of the issues referred to trial makes this point crystal clear. The issues for determination are:-

> "1. Whether the defendant unlawfully extracted chrome ore fines from the plaintiff's dump.
>
> 2. The quantum of ore fines extracted by the defendant, if any, from the plaintiff's claim.
>
> 3. The amount due and payable by defendant to plaintiff as damages based on the agreed value of the chrome ore concentrates.

It is these issues which the court is confined to and cannot go outside the case as pleaded by the parties. (*Minister of Safety and Security* v *Slabbert* (668/2009) [2009] ZASCA 1631)

The definitions of dump, holder, occupier, owner in section 5 of the Act must be considered in light of the pleadings.

The plaintiff's claim is not that of an owner or occupier of reserved ground who has been injuriously affected by the mining operations carried out on an underground extension block. There is no averment that the defendant's mining on an underground extension block has adversely affected the plaintiff entitling it to compensation.

I am therefore not persuaded by counsel for the defendant's argument that the pleadings speak to a shared boundary and that is the end of the matter. Counsel referred to *Kali* v *Incorporated General Insurance Ltd* 1976 (2) SA 179 (D) at 182 where the court said:-

> "The purpose of pleading is to clarify the issues between the parties and a pleader cannot be allowed to direct the attention of the other party to one issue and then at the trial, attempt to canvass another."

A reading of the pleadings does not support this argument. As clearly articulated in the issues referred to trial, there has been no indicating left and turning right on the part of the plaintiff. The issue revolves on whether the defendant unlawfully took the plaintiff's dump and if so, the quantity thereof and the resultant financial prejudice.

Counsel also referred to *Courtney-Clarke* v *Bassingthwaighte* 1991 (1) SA 684 (NM) and *Imprefed (Pty) Ltd* v *National Transport Commission* 1993 (3) SA 94 (A), cases which speak to the need to plead a cause and not change the complexion of such pleadings. I find nothing that shows a departure by the plaintiff from its cause of action as pleaded.

That said, I turn now to the issue of whether this court has jurisdiction to deal with the matter.

I have already said the claim is not located in s133 which specifically speaks to a compensation claim being adjudicated by the Administrative Court.

The court was referred to a plethora of cases which speak to the inherent jurisdiction of the High Court. (*Gombe Resources (Private) Limited* v *The Provincial Mining Director, Mashonaland Central & Ors* HH 405-18, *Derdale Investments (Pvt) Ltd* v *Econet Wireless (Pvt) Ltd & Ors* 2014 (2) ZLR 662 (H), *Chawora v Reserve Bank of Zimbabwe* 2006 (1) ZLR 525 (H), *Guwa & Anor* v *Willoughby's Investments (Pvt) Ltd* 2009 (1) ZLR 368 (S), *Chombo* v *National Prosecuting Authority & Ors* 2019 (1) ZLR 337.)

The thread which runs through these cases is that the High Court has jurisdiction to hear all matters except where limitations are imposed by law.

I must however make the point that had this matter been one located in s133, involving an owner or occupier of reserved ground who was injuriously affected by the mining operations carried out on an underground extension block, I would not have hesitated to direct that the parties take their matter to the court specifically given the jurisdiction to deal with issues of compensation under such circumstances.

I would have relied on the remarks by MAKARAU JP (as she then was) in *DHL International (Pvt) Ltd* v *Madzikanda* HH 51-2010 to the effect that a dispute falls to be determined by the Labour Court if such arises from a cause of action that has been specifically provided for in the Act and for which a remedy is also provided in the Act.

The judge cited with approval the decision in *National Railways of Zimbabwe* v *Railways Artisans Union & Ors* SC8-05 where the court had this to say:-

> "As a general statement, it is correct that the Labour Court has no jurisdiction to entertain claims that are brought at common law. It can only determine applications and appeals among others that are brought in terms of the Act, where, however, a dispute can either found a cause of action at common law and or in terms of the Act, a case of apparent concurrent jurisdiction between this court and the Labour Court appears to arise. I say appears to arise because the apparent conflict can be easily resolved by paying regard to the overall intention of the Legislature in creating the Labour Court. In my view, in such a case, the Labour Court's jurisdiction, being special, must prevail. It would make a mockery of the clear intention of the legislature to create a special court if the jurisdiction of such a court could be defeated by the mere

> framing of disputes into common law cause of action where the Act has made specific provisions for the same. In my view, if the dispute is provided for in the Act, the Labour Court has exclusive jurisdiction even if the dispute is also resolvable at common law."

Whilst these remarks were specifically dealing with the Labour Court, I would say, the reasoning can apply with equal force when regard is had to the provisions of s133. If compensation in a matter whose genesis is from s133 then such a matter ought to be placed before the Administrative Court. The Legislature, in its wisdom, has specifically stated that compensation issues under s133 shall be determined by the Administrative Court.

To argue that because the High Court has inherent jurisdiction and so it can deal with any and all matters unless statute specifically provides otherwise would result in the court being over loaded with cases that can and should be competently dealt with by courts which statute specifically states have the jurisdiction to handle such matters.

Having made the finding that the claim *in casu* is not one envisaged in s133 of the Mines and Minerals Act, I am consequently persuaded by counsel for the plaintiff's argument that the preliminary point taken seeking to oust this court's jurisdiction has no merit.

Whether the plaintiff can prove that the dump was its property and that the defendant unlawfully deprived it of the tonnage claimed and the money which was to be realised from the export of the product processed from that dump is an issue for trial, to be determined by this court.

**COSTS**

The plaintiff prayed for punitive costs arguing that the raising of the preliminary point was opportunistic and ought not to have been raised. It was an exercise in futility and meant to avoid dealing with the merits of the case. (*Telecel Zimbabwe (Private) Limited* v *Postal & Telecommunications Regulatory Authority (POTRAZ*) *& Ors* HH 440-15).

Punitive costs ought to be sparingly awarded. This is because they are an indication of censure and the party seeking such costs must show that the other party's conduct is deserving of such censure.

Costs are entirely at the discretion of the court (*Kerwin* v *Jones* 1958 (1) 400 (SR). Punitive costs are not granted lightly, they must be justified *(S* v *Makawa* 1991 (1) ZLR 142

(S), *Borrowdale Country Club* v *Murandu* 1987 (2) ZLR 77 (H), *Mahembe* v *Matambo* HB 322-2002).

I am unable to say counsel for the defendant's preliminary point was raised merely to waste time and to harass the plaintiff.

I therefore find no justification to mulct the defendant with punitive costs.

In the result I make the following order:-

1. The preliminary point on jurisdiction be and is hereby dismissed, with costs.

2. The Registrar shall set down the matter for trial.

*Danziger and Partners*, plaintiff's legal practitioners
*Farai and Associates L aw Chambers*, defendant's legal practitioners